

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 22, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03943

DEPENAU v. BARNES et al.

**DEFENDANTS MILESTONE FINANCIAL, LLC AND WILLIAM STUART’S
DEMURRER AND MOTION TO STRIKE SUPPLEMENTAL COMPLAINT**

The demurrer is overruled and the motion to strike is denied. However, considering plaintiff’s acknowledgement that discovery has made further amendment necessary, the Court orders plaintiff to file a first amended complaint that consolidates his original allegations, the completed foreclosure, and newly discovered facts. That new pleading shall be filed no later than October 23, 2026.

Plaintiff Paul Depenau, through his guardian ad litem and sister Judy Depenau, asserts he was the victim of a fraudulent loan transaction. He is 68 years old with alleged dementia and reduced or diminished cognitive capacity. He owns a home in Boulder Creek. In August 2024, defendants Milestone Financial, LLC dba MERS Link 4 (lender) and Levy Barnes and Mortgage Dynamics (broker) arranged a \$115,000.00 business purpose loan secured by Depenau’s residence. Depenau asserts that he was not involved in the loan transaction but that his stepdaughter, Angela Newton, “acting without authority and for her own benefit, used Paul’s [Depenau’s] home and signature to obtain funds she kept for herself. Paul had no business, no knowledge of the loan, and no capacity to consent.” (Compl. at ¶ 3.) The complaint, filed December 9, 2025, alleges causes of action for financial elder abuse, breach of fiduciary duty, and declaratory relief related to the loan.

Plaintiff filed a supplemental complaint alleging that defendants proceeded with a non-judicial foreclosure of the residence in February 2026, despite the earlier complaint and his

LAW AND MOTION TENTATIVE RULINGS
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counsel's clear communications that the loan was the product of elder financial abuse. The supplemental complaint pled causes of action for financial elder abuse, wrongful foreclosure, quiet title, and cancellation of the trustee's deed.

Defendants demur and move to strike the supplemental complaint on the grounds that such a pleading cannot allege new facts or causes of action and must only supplement the claims already pled. Plaintiff argues that is what the supplemental complaint does, but that now, months after the supplemental complaint was filed and the parties have conducted discovery, the better course of action would be to allow amendment so that all relevant allegations could be made in a single pleading.

The Court agrees and permits the filing of a first amended complaint. It is clear that the foreclosure is directly related to the earlier allegations, that it forms new alleged harms, and that permitting amendment furthers the strong policy favoring trial of a case on its merits. Courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Defendants' requests for judicial notice of Exhibits 1 and 2 are denied; the Court need not take judicial notice of its own records. Defendants' request for judicial notice of Exhibit 3, recorded trust deed, is granted.

No. 24CV01985

STRATTON v. STATE FARM GENERAL INS. CO., et al

DEFENDANT STATE FARM GENERAL INSURANCE COMPANY'S MOTION TO COMPEL PLAINTIFF LESLIE BLYTHE STRATTON TO PROVIDE FURTHER DISCOVERY RESPONSES AND MOTION TO COMPEL COMPLIANCE AND ORDER PLAINTIFF TO PRODUCE DOCUMENTS IN RESPONSE TO DEFENDANT'S REQUEST FOR PRODUCTION, SET TWO; SPECIAL INTERROGATORIES, SET TWO; AND REQUESTS FOR ADMISSION, SET TWO

DEFENDANT STATE FARM GENERAL INSURANCE COMPANY'S MOTION TO COMPEL PLAINTIFF ERICK REYES TO PROVIDE FURTHER DISCOVERY RESPONSES AND MOTION TO COMPEL COMPLIANCE AND ORDER PLAINTIFF TO PRODUCE DOCUMENTS IN RESPONSE TO DEFENDANT'S REQUEST FOR PRODUCTION, SET TWO; SPECIAL

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 22, 2026 TIME: 8:30 A.M.

INTERROGATORIES, SET TWO; AND REQUESTS FOR ADMISSION, SET TWO

The motion is granted as discussed below.

This action was brought by plaintiffs against their homeowner's insurance carrier, State Farm, and their insurance agent, Joe Stretch Insurance and Financial Services ("defendants") for two insurance claims: one relating to wind damage at their property and a second relating to a fire that caused damage to an ADU on the property. Plaintiffs assert breach of contract and tortious breach of the implied covenant of good faith and fair dealing against State Farm and negligence against State Farm and Joe Stretch Insurance and Financial Services.

Defendant State Farm ("State Farm") contends plaintiffs rented multiple rooms on their property, along with the ADU, to individuals during both of the events leading to the claims and that "[p]laintiffs discussed their attempts to hide their tenants from State Farm's claims adjusters with at least two tenants, Daniel Lopez and Jordan Dungan, based on Lopez and Dungan's deposition testimony." (Memorandum of Points and Authorities 'MPA' at p. 6.)

State Farm seeks to compel plaintiffs to produce additional documents in response to Defendant's Request for Production of Documents, Set Two, nos. 26, 27, 28, 30, and 36 as well as further responses to Special Interrogatories, Set Two, nos. 21, 22, 24, and 25 and to compel further responses to Requests for Admission, Set Two, nos. 14-15. Plaintiffs filed an opposition.

State Farm filed a reply on September 15, 2026, stating the parties had resolved some, but not all, of the discovery disputes raised in this motion. State Farm maintains it still seeks to compel Request for Production of Documents, no. 30; Special Interrogatories nos. 21, 22, 24, and 25; and Requests for Admission nos. 14-15 are still at issue.

i. *Special interrogatories, set two*

Special interrogatory number 21 asks plaintiffs to identify each person that rented a room in the main house of the property since September 1, 2022. Special Interrogatory number 22 seeks the dates each person lived on the property. Special interrogatory number 24 asks plaintiffs to identify each person who rented plaintiffs' ADU since December 1, 2022, and special interrogatory number 25 asks plaintiffs to state the dates each person identified in response to request number 24 lived on the property. In response, plaintiffs objected on the grounds of overbreadth and privacy. State Farm asserts there is no basis to support plaintiffs' position that the contact information of potential witnesses is private.

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 22, 2026 TIME: 8:30 A.M.

If it has not been provided, plaintiffs are ordered to serve verified, amended responses to interrogatories 21, 22, 24, and 25 with this information within 20 days of the date of this hearing as this information appears to be relevant to the claims asserted.

ii. *Requests for production, set two*

Request number 30 seeks all communications between plaintiffs and any person who rented a room in the main house at the property from January 1, 2022 to the present. Plaintiffs objected based upon overbreadth and privacy. State Farm asserts this information is relevant because plaintiff communicated with their tenants to hide from adjusters to prevent State Farm from learning the property was rented.

The requested information may lead to the discovery of admissible evidence. Plaintiffs are to serve amended responses to this request for production of documents with a privilege log for any documents withheld. “When asserting claims of privilege or attorney work product protection, the objecting party must provide ‘sufficient information’ to enable other parties to evaluate the merits of the claim, ‘including, if necessary, a privilege log.’ [Citations.]” (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) § 8:1474.5a.). If there are responsive documents which have not been produced and for which a privilege is not asserted, those are to be produced within 20 days from the date of this hearing.

iii. *Requests for admission, set two*

Request number 14 asks plaintiffs to admit they did not submit any repair invoices to State Farm related to the wind claim until on or after October 1, 2025. Request number 15 asks plaintiffs to admit that they did not submit any inventory of personal property losses to State Farm as a result of the fire claim until on or after December 1, 2025. In response, plaintiffs stated, “Jonathon Kobz would have submitted them on my behalf.” State Farm asserts this response is insufficient as plaintiffs failed to either admit, deny, or specify they are unable to respond.

The Court agrees. Plaintiffs are to serve amended responses to the request for admissions at issue. Plaintiffs’ current responses do not comply with the Discovery Act because they do not provide either an answer or objection. (Code of Civ. Proc. § 2033.210, subd. (b).) Code of Civil Procedure section 2033.220, subdivisions (b) and (c) require a response to contain either an admission, a denial, or a statement claiming inability to admit or deny. Plaintiffs’ current responses do not conform to this requirement, so they are ordered to serve amended responses within 20 days from the date of this hearing.

LAW AND MOTION TENTATIVE RULINGS
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No. 23CV00741

KRUEGER v. FORMICO

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Parties to appear.

On May 5, 2026, the parties were ordered to take the following actions:

- Plaintiff directed to release the liens on 1100 Graham Hill Road.
- Defendant directed to complete the sale of 1100 Graham Hill Road.
- Defendant directed to identify another real property holding with at least \$1,000,000.00 in equity to be exchanged for 1100 Graham Hill Road as security.
- No liens to be recorded by defendant without Court approval.

On August 7, 2026, the parties appeared at this continued Motion to Enforce Settlement hearing. Counsel for plaintiff informed the Court that defendant continues to fail to comply with the terms of settlement and that the 1100 Graham Hill Road property was taken off the market. The Court continued the hearing to August 7, 2026 and then to this date for continued status of compliance with the Court's May 5, 2026 orders. [The Court's Minute Order of August 7, 2026 states that motion to enforce settlement was tentatively denied and continued for status of compliance with the Court's May 5, 2026 orders.]

On September 14, 2026, plaintiff filed a status report and defendant filed a declaration. Plaintiff asserts defendant took the property off the market on July 14, 2026, and then re-listed the property with an asking price of \$2,195,000.00.¹ Plaintiff seeks the following orders from the court: (1) requiring defendant to sign the Deeds of Trust attached to the Addendum to the Settlement Agreement; (2) ordering defendant to pay \$18,544.22 to plaintiff due and owing under the settlement agreement (defendant has paid \$4,000.00), (3) ordering defendant to reimburse plaintiff \$2,781.00 incurred in obtaining appraisals of his properties, and (4) awarding plaintiff \$31,590.00 in attorney's fees and costs for bringing these motions due to defendant's breaches of the Settlement Agreement and his failure to comply with the Court's May 5, 2026 orders. Defendant filed a declaration, stating delays are due to the non-cooperation of plaintiff and her counsel, and he maintains there is still a tax lien clouding title, preventing defendant from selling the property, that plaintiff was supposed to cure. (Decl. of Formico at ¶ 4.)

¹ Plaintiff asserts defendant stated at the May 5, 2026, hearing that he had an offer on the property for \$2,400,000.00 but refused to accept it. (Plaintiff's Update at p. 4.)